

25VECV04729 25VECV04729

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MIDURYAN V TOYOTA

[TENTATIVE]

ORDER: Defendant Toyota Motor Sales, U.S.A., Inc.'s Motion to Strike portions of the First Amended Complaint is GRANTED WITH 20 DAYS LEAVE TO AMEND.

Introduction

Defendant Toyota

Motor Sales, U.S.A., Inc. (Defendant) moves to strike portions of Plaintiff Ripsime Miduryan's (Plaintiff) First Amended Complaint (FAC).

Specifically, Defendant moves to strike Plaintiff's request for punitive damages within the sixth cause of action (COA) for fraudulent inducement – concealment.

Discussion

Defendant moves

to strike the request for punitive damages. Defendant argues the sixth COA fails as a matter of law thus the punitive damages request is improper. (Mot., pp. 5-6.) Defendant further argues Plaintiff fails to allege specific facts as to malice, oppression, or fraud, and fails to allege specific facts as to a corporate entity. (Mot., pp. 7-8.)

First, Defendant

has previously filed a demurrer and motion to strike portions of Plaintiff's

Complaint. (See 4/20/26 Minute Order.) That demurrer placed into issue the sixth COA for fraud inducement – concealment, and the motion to strike requested punitive damages be stricken. This Court overruled Defendant's demurrer and granted the motion to strike on the grounds the Complaint insufficiently alleged punitive damages against a corporate entity. (See 4/20/26 Minute Order.)

The sixth COA of Plaintiff's Complaint and the sixth COA of Plaintiff's FAC are identical, except the addition of the language "(and its directors, officers, employees, affiliates, and/or agents)." (FAC, paras. 53, 58; Compl., paras. 52, 57.) This Court already found the sixth COA sufficiently pled when it overruled Defendant's demurrer to the same claim in the original Complaint. (4/20/26 Minute Order.) Because the FAC's fraud allegations are substantively unchanged, Defendant's argument that the sixth COA fails as a matter of law is not persuasive.

The FAC also alleges "[a]ll acts of corporate employees as alleged were authorized or ratified by an officer, director, or managing agent of the corporate employer." (FAC, para. 7.) These additions are insufficient to plead punitive damages against a corporate entity. Plaintiff alleges Defendant and its directors, officers, employees, affiliates, and/or agents actively concealed a known defect, but these allegations are conclusory in nature and lack specific facts.

Plaintiff's conclusory allegations made in the FAC, specifically paragraphs 7, 53, and 58, are unpersuasive. "Conclusory allegations" that defendant's conduct was "malicious" are insufficient and subject to being stricken. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1036.) "In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255; Grieves v. Superior Court (1984) 157 Cal. App. 3d 159, 166; Blegen v. Superior Court (1981) 125 Cal. App. 3d 959, 962-963.) Conclusory allegations are not the same as ultimate facts. "The complaint must allege ultimate facts, not evidentiary facts or conclusions of law." (Krug v. Meeham (1952) 109 Cal.App.2d 274, 277. Plaintiff must allege facts showing that a specific officer, director, or managing agent personally committed, authorized, or ratified the wrongful conduct, which Plaintiff fails to do. For corporate defendants, punitive damages are only available if

the wrongful act was committed by—or ratified by—an officer, director, or “managing agent.” A managing agent is not just a supervisor; they must have substantial authority over corporate policy that affects a broad segment of the company. There are no allegations in the FAC of misconduct or fraud against a specific officer, director, or managing agent, or authorization or ratification of any such misconduct or fraud. The Court is persuaded by Defendant’s argument that Plaintiff does not plead facts sufficient for punitive damages against a corporate entity.

Defendant’s
motion to strike punitive damages is GRANTED WITH LEAVE TO AMEND.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.